



Fox Brothers Holdings Ltd
Unit 11 Neptune Court,
Hallam Way,
Whitehills Business Park,
Blackpool FY4 5LZ

Phone 01253 893 339
Email info@foxgroup.co
Web www.foxgroup.co

Date: 01st April 2025

Subject: Appointment of Competent Individual to Take Charge of Quarry Operations -
Regulation 8, Quarries Regulations 1999

To: Barry Thompson

From: Andrew Swinnerton, Fox Brothers Holdings Ltd, COO

1. Appointment:

- This letter formally appoints you as the competent individual to take charge of the operation of Ellel Quarry, Lydiate Lane Quarry, Bacup Quarry and Woods Waste at all times when persons are working in the quarry, in accordance with Regulation 8(1)(c) of the Quarries Regulations 1999.
- Your appointment is effective from 5th April 2025.

2. Authority and Duties:

- You are authorized to:
 - Ensure all work is carried out safely and in accordance with the Health and Safety Document; Stop work if there is a serious and imminent danger; Delegate tasks to competent individuals and report to senior management any areas of concern or incidents and accidents
 - Supervise all aspects of extraction, processing, tipping, restoration and lagoons; Conduct regular safety inspections of all working areas, tips and lagoons in compliance with the regulations and the geotechnical plan.
 - Authorize the use of equipment, approve work methods, ensuring RAMS are in place to carry out all activities on site and are reviewed and updated at regular appropriate intervals. To spend reasonable costs on discharging duties to ensure safety of all persons on site.
- You are responsible for:
 - Ensuring the quarry is operated safely and in accordance with the Health and Safety Document; Maintaining a safe working environment; Ensuring all personnel are competent and trained;
 - Reporting incidents, near misses, and safety concerns; Maintaining records of safety inspections,

3. Nominated Substitute:

- In the event of your unavailability, you must appoint a nominated substitute to hold the authority and perform the duties of the first named individual under regulation 8.1(d)
- Their authority and duties are detailed in the Health and Safety Document.

Company Reg 14452190

4. Competence:

- You are deemed competent to undertake these duties based on your Training & experience, further qualifications will be offered as and when required.
- You will be required to maintain your competence through ongoing training and development.

5. Health and Safety Document:

- You are required to be familiar with and comply with the Health and Safety Document for the named sites in clause 1 Appointment.
- You will be provided with a copy of the relevant sections of the Health and Safety Document that describe your authority and duties.
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6. Review:

- This appointment will be reviewed regularly, and revised if necessary, particularly if the quarry undergoes significant changes.

7. Signature:



Andrew Swinnerton, COO

8. Acceptance:



Barry Thompson,
Quarries Operations Manager

Date... 8.4.25

Note: Please return a signed copy to Lee Hardy and keep a copy on file at site for inspection